# CRIMINAL LAW

**Tuesday, Sept. 29**
**(Lecture 9)**

***Hello! This slide will help you prepare for today's class.***

- **We will return to our discussion of "voluntariness." Please be prepared to discuss *North Bay (City) v. Viens***

- **We will then turn to Causation. Please be prepared to discuss the associated readings, especially *Smithers* and *Maybin*.**

# CRIMINAL LAW

## Wednesday, September 24
## (Lecture 9)

# DF Sessions

- **DF Session #1: Monday, October 5, 12:30-2:00 (IKB 2002)**
- **<u>Topics:</u>**
  - **Strategies for weekly reading & note-taking**
  - **Developing a "timeline" for studying/exam-prep**
- *Materials will be posted to eClass after the session*

- ***DF Session #2: Wednesday, Nov. 18, 2:30 PM - 3:30 PM***

# *Actus Reus*

- **"The prohibited act".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **[*voluntary*] conduct**; and, in some cases, the consequences and/or circumstances.



# Voluntariness

*General definitions*

- **The conduct is not "willed"** (*Daviault*)
- **"The mind does not go with what is being done"** (*Rabey*)

*Types of involuntariness*

- **Physical involuntariness**
- **Automatism, extreme intoxication, some NCR-MD** (covered in defences)
- **Moral involuntariness** (covered in defences: necessity & duress)

# Objectives for Week 4 (continued)

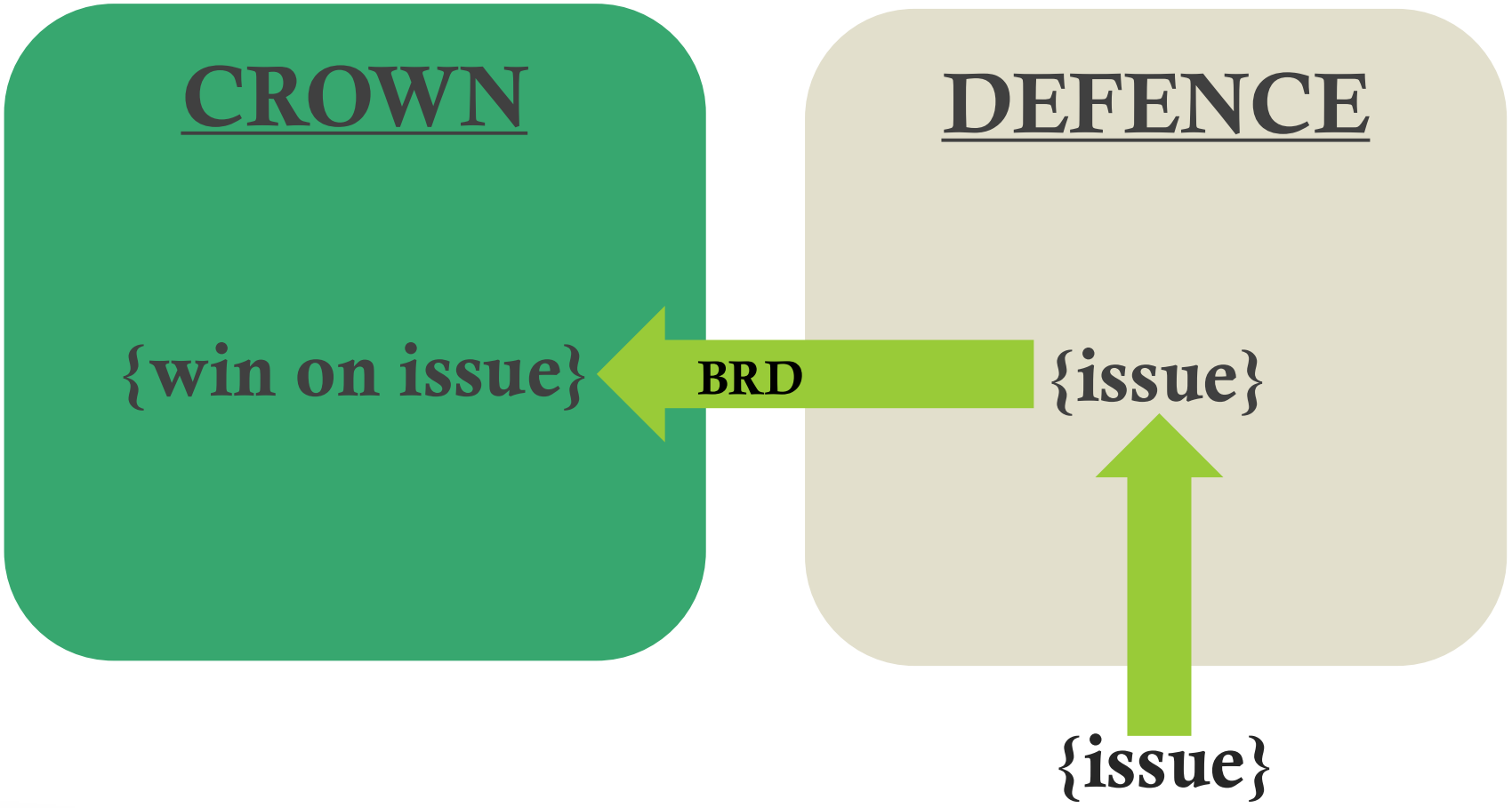
29. **Explain the voluntariness component of *actus reus***

30. **Understand how physical involuntariness claims are adjudicated (including the evidentiary burden, burden of proof, and standard of proof that are applied)**

# *North Bay (City) v. Viens*



# Evidentiary Burden



# Physical Involuntariness

- **Involuntariness = conduct is not willed, not controlled; cannot be attributed to the accused as an agent**
- **Involuntariness → no *AR* (hence, not guilty of offence)**
- **Physical involuntariness:**
  - Examples include sneezing fit; being physically moved by external force (e.g. pushed into someone); some one-off medical events such as heart attacks (where there is not an elevated risk of recurrence).
  - Not arising from specified mental or self-induced states like extreme intoxication, mental disorders; *we will study these later, under 'defences.'*
  - Distinction between 'physical involuntariness' and other forms of involuntariness is largely policy-driven, informed by case law.
    - *We will learn about the distinction when we get to defences!*

# Physical Involuntariness

- **Voluntariness is *always* required as part of AR, but it can usually be assumed with no need for proof; it is rarely a live issue.**
- **Accused claiming involuntariness bears evidentiary burden:**
  - Apply "Air of Reality" test from *Cinous*: Is there evidence of involuntariness on the record based on which a properly instructed jury, acting reasonably, could acquit?
  - Air of reality → voluntariness an issue
- **For *physical* involuntariness, Crown bears the legal burden:**
  - Apply **BRD standard of proof**: Has the Crown proved voluntariness BRD?
    - No = reasonable doubt as to whether the accused was voluntary; hence, reasonable doubt as to whether the accused committed the *actus reus.* Acquittal!
    - Yes = no reasonable doubt as to whether the accused was voluntary. If all other AR and MR elements are proved BRD (and if not defence exists), conviction. (See e.g. *Viens*)

# Objectives for Week 4 (continued)

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30. **Understand how physical involuntariness claims are adjudicated (including the evidentiary burden, burden of proof, and standard of proof that are applied)**

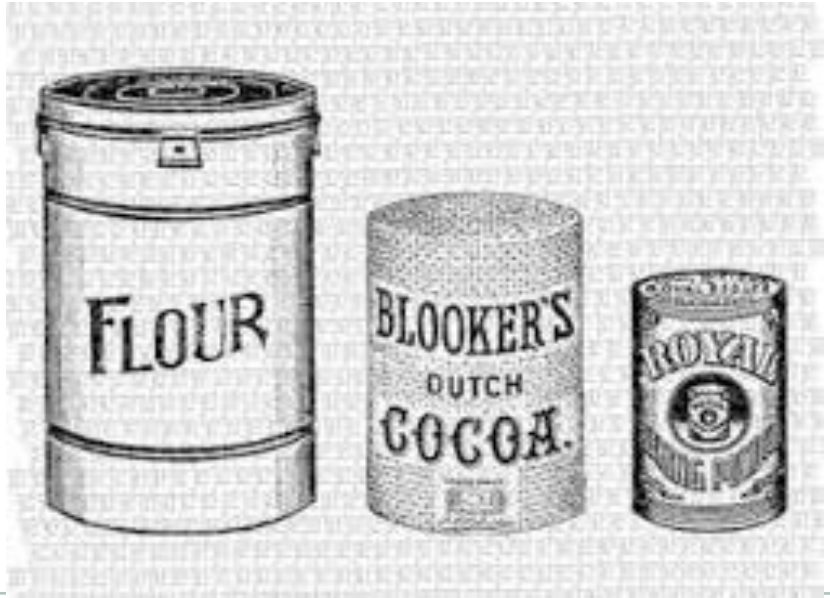
# Objectives for Week 5

31. **Identify when causation is an issue in a case.**
32. **State and apply the standard(s) for causation (*Smithers/Nette*).**
33. **Explain and apply the following rules/principles:**
    (a) **Thin skill**
    (b) **The substantial cause test for s. 231(5)**
    (c) **Intervening acts**

# *Actus Reus*

- **"The prohibited act [or omission]".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **conduct**; and, in some cases, the **consequences** and/or **circumstances**.



# Consequences

**265 (1)** A person commits an assault when

**(a)** **without the consent of another person**, he **applies force** intentionally **to that other person, directly or indirectly** …

**267** Every person is guilty of [a hybrid offence] who, **in committing an assault** …

**(b)** **causes bodily harm** to the complainant …

**Thespian throws a wet rag at Director, causing …**

- **Her to drop her clipboard…**
- **Her to feel really annoyed…**
- **Costar to get distracted…**
- **Her shirt to get damp…**

**Thespian throws a heavy drinking glass at Director, causing …**

- **Her to cry out…**
- **Her to feel frightened…**
- **Costar to become deeply upset…**
- **A cut on her arm…**

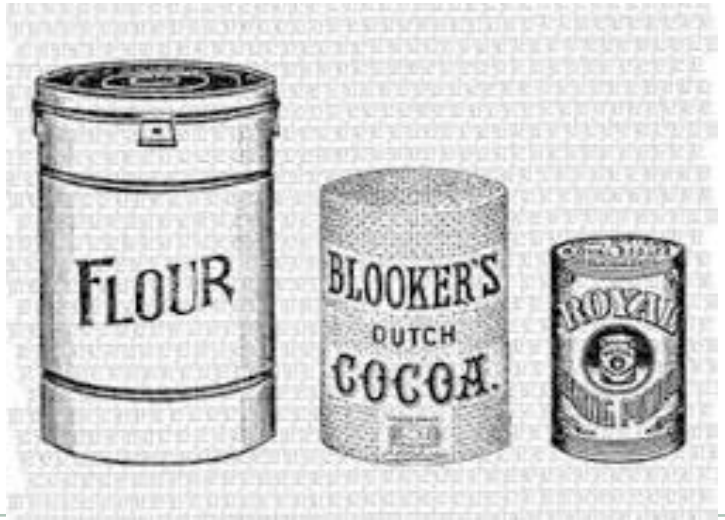
# Causation

**"Where the offence specifies a particular consequence, it must be determined that the accused caused the consequence to occur, beyond a reasonable doubt." (D. Stuart)**

# *Actus Reus*

- **"The prohibited act [or omission]".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **[voluntary] conduct**; and, in some cases, the **consequences [and, if so, causation]** and/or **circumstances**.

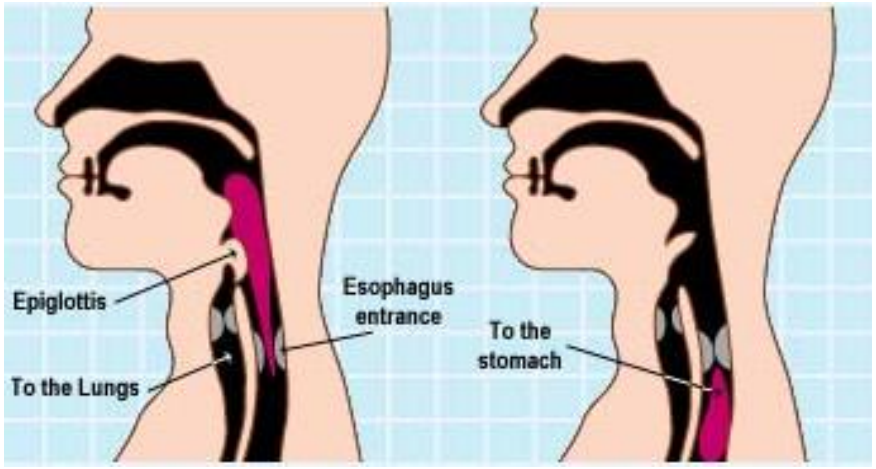


# Objectives for Week 5 (continued)

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# *R. v. Smithers*

**"[T]he kick was at least a contributing cause of death, outside the *de minimis* range, and that is all the Crown was required to establish."**



# *R. v. Nette*

**"In order to explain the standard as dclearly as possible to the jury, it may be preferable to phrase the standard of causation in positive terms using a phrase such as 'significant contributing cause' rather than using expressions phrased in the neagative such as 'not a trivial cause' or 'not insignificant'. Latin terms such as *'de minimis'* are rarely helpful."**

# Causation Test(s)

**Two (interchangeable) standards:**

- ***The act/omission must be*** **"a contributing cause, beyond the *de minimis* range" (*Smithers*)**
- ***The act/omission must be*** **"a significant contributing cause" (*Nette*)**

# *Actus Reus*

**267** Every person is guilty of an indictable offence and liable to imprisonment for a term of not more than 10 years or is guilty of an offence punishable on summary conviction who, in committing an assault …

**(b)** causes bodily harm to the complainant …

**Thespian is upset at Director after learning he was not cast in the play. In a burst of anger, he picks up a heavy drinking glass from the props table and throws it at Director, striking her and cutting her arm.**

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**What standard should we apply to assess whether Thespian's indirect application of force (conduct) caused Director's injury (consequence)?**

**Applying that standard, did Thespian cause Director's injury?**

# Objectives for Week 5 (continued)

31. **Identify when causation is an issue in a case.**

32. **State and apply the standard(s) for causation (*Smithers/Nette*).**

33. **Explain and apply the following rules/principles:**
    - (a) **Thin skill**
    - (b) **The substantial cause test for s. 231(5)**
    - (c) **Intervening acts**

# *R. v. Blaue* (1975)

**"It has long been the policy of the law that those who use violence on other people must take their victims as they find them. This in our judgment means the whole [person], not just the physical [person]."**

# Objectives for Week 5 (continued)

31. **Identify when causation is an issue in a case.**
32. **State and apply the standard(s) for causation (*Smithers/Nette*).**
33. **Explain and apply the following rules/principles:**
    (a) **Thin skill**
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    (c) **Intervening acts**

# *Criminal Code*, s. 231(5)

**Irrespective of whether a murder is planned and deliberate on the part of any person, murder is first degree mu the death is caused b or attempting e of the following**



**[… sexual tc ('crimes of domina**

# *R. v. Harbottle* (S&C 292-294)

**"…I suggest a restrictive test of substantial cause should be applied under [s. 231(5)]. That test will take into account the consequences of a conviction, the present wording of the section, its history and its aim to protect society from the most heinous murderers. […]**

**… an accused may only be convicted under the subsection if the Crown establishes that the accused has committed an act or series of acts which are of such a nature that they must be regarded as a substantial and integral cause of the death."**

# Objectives for Week 5 (continued)

31. **Identify when causation is an issue in a case.**
32. **State and apply the standard(s) for causation (*Smithers/Nette*).**
33. **Explain and apply the following rules/principles:**
    - (a) **Thin skill**
    - (b) **The substantial cause test for s. 231(5)**
    - (c) **Intervening acts**

# Intervening Acts

**"[T]he law recognizes that other causes may intervene to 'break the chain of causation' between the accused's acts and the death [or other consequence]. This is the concept of an 'intervening cause', that some new event or events result in the accused's actions not being a significant contributing cause of death [or other consequence]."**

**(*Maybin* at para. 23, citing *Tower*)**

# Intervening Acts

**Intervening act severs chain of causation (i.e. the Crown cannot prove causation beyond a reasonable douby) *if*:**

**1. <u>Act not a significant contributing cause of consequence</u>. Use "analytic aids" to assess:**

- **Reasonably foreseeable consequence of accused's actions?**
- **Independent act that severed the connection?**

***<u>AND</u>***

**2. Intervening act is not excluded by the *Criminal Code*.**

# Intervening Acts – *CC* ss. 224-226

**Death that might have been prevented**

**224** Where a person, by an act or omission, does any thing that results in the death of a human being, he causes the death of that human being notwithstanding that death from that cause might have been prevented by resorting to proper means.

**Death from treatment of injury**

**225** Where a person causes to a human being a bodily injury that is of itself of a dangerous nature and from which death results, he causes the death of that human being notwithstanding that the immediate cause of death is proper or improper treatment that is applied in good faith.

- *Example: R. v. Reid* (2003 NSCA 104)

**Acceleration of death**

**226** Where a person causes to a human being a bodily injury that results in death, he causes the death of that human being notwithstanding that the effect of the bodily injury is only to accelerate his death from a disease or disorder arising from some other cause.

**Penny Parent and her four-year-old son, Samson, are playing in their front yard with their dog. Their neighbour, Dawson Defendant, is sitting on his porch reading the newspaper. Suddenly, the dog runs off. Penny hurriedly asks Dawson, "Can you watch Sampson for me?" Dawson shouts "I've got it covered!" Penny says, "Sampson, you listed to Dawson!" then she runs off. Dawson continues to read his newspaper. Samson runs into the street and is struck by a car and injured.**

Assume Dawson made an undertaking and was under a legal duty per s. 217 of the *Criminal Code*. Assume he failed to perform this duty, so the conduct requirement for criminal negligence causing bodily harm is met.

Assume Samson's injuries constitute bodily harm, so the consequence is also met.

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**What standard should we apply to assess whether Dawson's omission (conduct) caused Samson's injury (consequence)?**

**Applying that standard, did Dawson cause Samson's injury?**

# Objectives for Week 5 (continued)

31. **Identify when causation is an issue in a case.**
32. **State and apply the standard(s) for causation (*Smithers/Nette*).**
33. **Explain and apply the following rules/principles:**
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# *Summary of Main Points (1/5)*

- **Causation is an issue when one of the 'ingredients' for the crime is a consequence.**
- **Where causation is at issue, Crown must be prove causation beyond a reasonable doubt.**
- **Causation is determined by the trier of fact (trial judge or jury), taking into account all the evidence, including lay and expert testimony.**

# *Summary of Main Points (2/5)*

- **Causation encompasses two concepts:**
  - **Factual causation is concerned with the physical or medical cause ("but for…")**
  - **Legal causation is concerned with whether those who have factually caused prohibited consequences should be held liable; a normative inquiry**

# *Summary of Main Points (3/5)*

- **Factual and legal causation inquiries are joined. The trier of fact applies one of two (interchangeable) standards:**
  - **"Contributing cause, beyond the *de minimis* range" (*Smithers*); or**
  - **"Significant contributing cause" (*Nette*)**

# *Summary of Main Points (4/5)*

**… Additional rules we covered:**

- **<u>Thin skull</u> rule (*Smithers; Blaue*) – accused takes victim as they find them**
- **<u>Substantial cause</u> test for s. 231(5) (*Nette; Harbottle)* – the *substantial* cause standard applies to s. 231(5) first degree murder. The *Smithers/Nette* causation standard applies everywhere else.**

# *Summary of Main Points (5/5)*

**… Additional rules we covered (continued):**

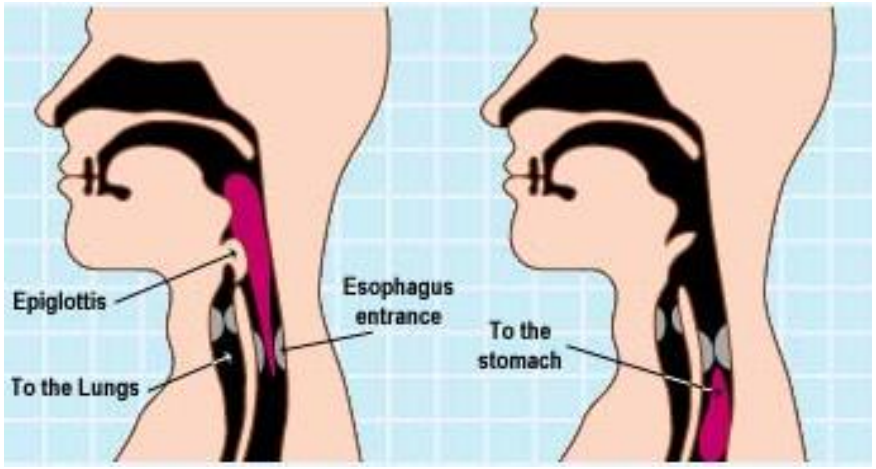
- **Intervening acts (*Maybin*) – *Smithers/Nette* test governs, but intervening acts can be assessed using "analytic aids": reasonable foreseeability & independent acts**
- ***Criminal Code*, ss. 224, 225, 226 – set out rules for specific intervening acts**

# Objectives for Week 5 (continued)

34. **Reflect on how racism and other forms of discrimination can impact fact-finding in criminal investigations and trials.**

# *R. v. Smithers*

**"[T]he kick was at least a contributing cause of death, outside the *de minimis* range, and that is all the Crown was required to establish."**



# *R. v. Smithers* – conflicting facts

- **"Although undoubtedly much upset by the actions and language of Cobby during the first ten minutes of play, thereafter the appellant alone was the aggressor. He relentlessly pursued Cobby some forty-five minutes later for the purpose of carrying out his threats to 'get' Cobby" – a "frail factual underpinning for [self] defence".** (SCC)

- "**Exactly what happened next depends on the eyes that saw it. Paul [Smithers] testified that Barrie [Cobby] was coming at him, so he kicked out, catching Barrie in the midsection. Barrie's friends testified that he [Barrie] was only trying to retreat to his car."** (Dan Proudfoot, "The Tragedy of Barry and Paul", *The Ottawa Journal*, 12 July 1975)

# *R. v. Smithers* – jury charge

**"At one time in sport, the losing team used to call for three cheers for the winners and the winning team reciprocated with three cheers for the losing team. Do you remember those days? How far have we travelled away from this concept when on the eighteenth of February 1973, one boy had to be taunted and insulted for the accident of birth which gave him a darker skin, and another boy, at least according to many Crown witnesses, was in such fear that when he left his team dressing room he was accompanied by an escort.**

**I say these things because I am sure that you have been appalled, as I have been while listening to the evidence to hear how sportsmanship has been so lost, by fifteen and sixteen year old participants and by some spectators, as to make what once was the sport of hockey something that practically has disappeared from sight. And this in what has been termed a House League."**

From His Honour Judge Barry Shapiro's charge to the jury in the case *Regina vs. Smithers*, quoted in the Investigation and Inquiry Into Violence in Amateur Hockey (William McMurtry, Commissioner) (1974)

# *R. v. Smithers & fact-finding*

Paul Smithers

## Father seeking probe on trial of Smithers

Paul Smithers has been ou
of jail for more than a montl
but his father is still trying t
convince the federal Justic
Department that one of th
jurors in Paul's trial for mar
slaughter was prejudiced. H
wants an inquiry.

Mr. Smithers, now 2
served three months of a ri
have to be put in proper context, don't
they? There is Mr. Campbell saying that
fighting in hockey is "the least danger-
ous of fouls committed . . . the best
safety valve I know". And there, out in



PAUL SMITHERS, 17, who was found guilty of manslaughter in the death of a rival hockey player, sits in the living room of his Mississauga home yesterday with his white mother, Joyce Smithers, and his black father, Donald. Family says reaction to their plight is sympathetic, with strangers offering help.

—Other photo by Jack Davies

## up seeks her probe Smithers

ISSAUGA (CP) — A
called the Friends of
mithers says it will ask
Justice Minister Ron-
sford to order a contin-
of an investigation into
y which convicted Paul
rs of manslaughter in

eal